HOUSE CONCURRENT RESOLUTION No. 5004

A PROPOSITION to amend section 1 of article 5 of the constitution of the state of Kansas to require individuals to be citizens of the United States, at least 18 years of age and a resident of the voting area in which such person seeks to vote in order to vote in this state.

Be it resolved by the Legislature of the State of Kansas, two-thirds of the members elected (or appointed) and qualified to the House of Representatives and two-thirds of the members elected (or appointed) and qualified to the Senate concurring therein:

Section 1. The following proposition to amend the constitution of the state of Kansas shall be submitted to the qualified electors of the state for their approval or rejection: Section 1 of article 5 of the constitution of the state of Kansas is hereby amended to read as follows:

"**§ 1. Qualifications of electors.** ~~Every~~*(a) No person shall be deemed a qualified elector unless such person:*

(1) Is a citizen of the United States ~~who~~*;*

(2) has attained the age of eighteen years*;* and ~~who~~

(3) except as provided in subsection (b) or (c), resides in the voting area in which ~~he or she~~ *such person* seeks to vote ~~shall be deemed a qualified elector~~.

(b) Laws of this state relating to voting for presidential electors and candidates for the office of president and vice-president of the United States shall comply with the laws of the United States relating thereto. A citizen of the United States, who is otherwise qualified to vote in Kansas for presidential electors and candidates for the offices of president and vice-president of the United States may vote for such officers either in person or by absentee ballot notwithstanding the fact that such person may have become a nonresident of this state if ~~his or her~~ *such person's* removal from this state occurs during a period in accordance with federal law next preceding such election.

(c) A person who is otherwise a qualified elector may vote in the voting area of ~~his or her~~ *such person's* former residence either in person or by absentee ballot notwithstanding the fact that such person may have become a nonresident of such voting area during a period prescribed by law next preceding the election at which ~~he or she~~ *such person* seeks to vote, if ~~his~~ *such person's* new residence is in another voting area in the state of Kansas."

Sec. 2. The following statement shall be printed on the ballot with the amendment as a whole:

"*Explanatory statement.* This amendment would clarify that only a person who is a citizen of the United States is eligible to vote in this state.

"A vote for this proposition would clarify that only a person who is a citizen of the United States is eligible to vote in this state.

"A vote against this proposition would make no change to the constitution of the state of Kansas, and the language concerning voter qualifications would remain the same."

Sec. 3. This resolution, if approved by two-thirds of the members elected (or appointed) and qualified to the House of Representatives and two-thirds of the members elected (or appointed) and qualified to the Senate, shall be entered on the journals, together with the yeas and nays. The secretary of state shall cause this resolution to be published as provided by law and shall cause the proposed amendment to be submitted to the electors of the state at the general election in November in the year 2026, unless a special election is called at a sooner date by concurrent resolution of the legislature, in which case the proposed amendment shall be submitted to the electors of the state at the special election.

I hereby certify that the above CONCURRENT RESOLUTION originated in the HOUSE, and was adopted by that body

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Speaker of the House.

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Chief Clerk of the House.

Adopted by the SENATE _____

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President of the Senate.

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Secretary of the Senate.